

[*285] entered upon the lands, and having applied the *rents to the trust, but never having been admitted, and the heir of B. filed a bill against the lord for compelling him to grant him admission, Lord Loughborough said, "If a man has got the legal estate, the Court will not take it from him, except for some person who has a claim; but does it follow that the Court will *give* him the legal estate" (a). [But a Court of law will grant a *mandamus* to the lord to admit the heir of the trustee (b), and prior to the late Act the heir when admitted was entitled to hold the lands for his own benefit (c).]

24. **If cestui que trust die without next of kin, the trust chattel goes to the Crown.**—If a *cestui que trust* of *chattels*, whether *real or personal*, die intestate, without leaving any *next of kin*, the beneficial interest will not, in this case, remain with the trustee, but like all other *bona vacantia* will vest in the Crown by the prerogative (d). And the result will be the same where the *cestui que trust*, though not dying absolutely *intestate*, has appointed an *executor*, who by the language of the will itself is excluded from any beneficial interest (e). But an executor not expressly made a trustee by the will, was, before the Act of William IV. (f), entitled *primâ facie* to the surplus for his own benefit, and that statute it is conceived has converted him into a trustee for the *next of kin* only, and has not altered the old law, as between him and the *Crown*, in case there be no next of kin (g).

25. **Trustee cannot set up title adverse to cestui que trust.**—A trustee is, under no circumstances, allowed to set up a

(a) *Williams v. Lord Lonsdale*, 3 Ves. 752, see 756, 757.

[(b) *Rex v. Coggan*, 6 East, 431.]

[(c) *Gallard v. Hawkins*, 27 Ch. D. 298. See now 47 & 48 Vict. c. 71, s. 4.]

(d) If the intestate leave a widow and no next of kin the Crown takes a moiety of the personal estate; *Cave v. Roberts*, 8 Sim. 214.

(e) *Middleton v. Spicer*, 1 B. C. C. 201; *Taylor v. Haygarth*, 14 Sim. 8; *Russell v. Clowes*, 2 Coll. 648; *Powell v. Merrett*, 1 Sm. & G. 381; *Cradock*

v. Owen, 2 Sm. & G. 241; *Read v. Stedman*, 26 Beav. 495; [*Dillon v. Reilly*, 9 L. R. Ir. 57; *Re Mary Hudson's Trusts*, 52, L. J. N. S. Ch. 789; and see *Re Gosman*, 15 Ch. D. 67.] The foregoing were all cases of failure of next of kin of the author of the trust, but the principle of the decisions applies equally.

(f) 11 G. 4 & 1 W. 4, c. 40.

(g) See *ante*, p. 61; [so now decided *Re Knowles*, 49 L. J. N. S. Ch. 625.]